

25STCV24810 25STCV24810

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C406%2C09%2F18%2F2026

Source SHA-256: 400355a0754962757ba4c2732bf9856955918a1206504d245a0dbb0087427987

Case Number: 25STCV24810 Hearing Date: September 18, 2026 Dept: 406

ALEXYS WATSON,

Plaintiff,

v.

PEGAH KHOSRAVI,

Defendant.

Case No.: 25STCV24810

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

plaintiff's motion for summary judgment
or adjudication

BACKGROUND

On August 25, 2025, Plaintiff Alexys

Watson filed this action against Defendant Pegah Khosravi, asserting causes of action for violation of FEHA, violation of the Unruh Act, and negligence. The complaint stems from Defendant's refusal to engage with Plaintiff as a housing applicant based on Plaintiff's participation in Section 8.

On June 23, 2026, Plaintiff filed the instant motion for summary judgment or adjudication. Defendant filed an opposition on September 3, 2026. Plaintiff filed a reply on September 4, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

DISCUSSION

I.

Undisputed Facts

Plaintiff was the recipient of a Section 8 voucher and intended to use it to rent a portable housing unit. (Plntf.'s Stmt. of Undisputed Facts (UF) 1, 6.) When Plaintiff contacted Defendant to schedule a tour of Defendant's property, Defendant responded, “We

don't accept Section 8." (UF 7-10.) Defendant admitted that the sole reason for refusing to rent to Plaintiff was Plaintiff's intended use of a Section 8 voucher. (UF 13.) Defendant acted on the advice of her real estate agent, who advised her not to rent to tenants using Section 8 vouchers. (UF 4-5.) Defendant did not consult an attorney or local housing authority, or conduct independent legal research. (UF 5.)

II.

FEHA

FEHA makes it unlawful "[f]or the owner of any housing accommodation to discriminate against or harass any person because of the . . . source of income . . . of that person." (Gov. Code, § 12955(a).) FEHA also prohibits the publication of any statement indicating a preference or limitation based on a protected characteristic, including source of income. (Id., § 12955(c).) "Source of income" includes "federal housing assistance vouchers issued under Section 8 of the United States Housing Act of 1937." (Id., § 12955(p)(1).)

Here, the undisputed facts establish housing discrimination based on source of income as defined by FEHA. However, a plaintiff moving for summary judgment or adjudication must "prove[] each element of the cause of action." (Code Civ. Proc., § 437c(p)(1).) The plaintiff may not "seek summary adjudication of liability only, leaving the resolution of damages to a later trial." (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.)

Plaintiff has no evidence of her damages.

She simply avers in conclusory fashion that "Defendant Khosravi's refusal harmed me. I was denied the opportunity to tour, apply for, or rent the Subject Property because of my lawful source of income." (Watson Decl. ¶ 9.) Plaintiff's evidence does not identify any harm nor establish any causal connection between Defendant's actions and the harm. Thus, Plaintiff effectively "seek[s] summary adjudication of liability only, leaving the resolution of damages to a later trial." (See Paramount, supra, 227 Cal.App.4th at p. 241.) This is impermissible, because a motion for summary adjudication must "completely dispose[] of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).)

Plaintiff argues that she is not leaving

open the question of damages, because she only seeks the Unruh minimum of \$4,000 and waives all other damages. (Reply 2:6-9; Civ. Code, § 52(a).) However, the Unruh damage provision does not apply to FEHA. Thus, the FEHA claims would still fail even if Plaintiff could establish entitlement to Unruh damages as a matter of law. Moreover, for the reasons discussed below, Plaintiff has not established her entitlement to recovery under Unruh.

In sum, Plaintiff is not entitled to summary adjudication of the FEHA claims because she has failed to establish all elements, specifically damages.

III.

Unruh

Unruh provides that “[a]ll persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” (Civ. Code, § 51(b).)

Source of income is not listed as a protected characteristic under Unruh. Plaintiff cites *Marina Point, Ltd. v. Wolfson* (1982) 30 Cal.3d 721 for the proposition that protection under Unruh is not limited to the enumerated characteristics. However, *Marina Point* pertained to discrimination against families with children. The case did not suggest that Unruh protects every conceivable characteristic, including source of income. To the contrary, the court in *Harris v. Capital Growth Investors XIV* (1991) 52 Cal.3d 1142, 1148 found that Unruh does not “encompass economic criteria.” Harris acknowledged that “decisions have occasionally recognized additional categories of prohibited discrimination.” (Ibid.) However, those cases pertained to “personal characteristics of individuals that bore little or no relationship to their abilities to be responsible consumers of public accommodations,” such as “physical appearance and family status.” (Ibid.) By contrast, permitting businesses to make decisions based on economic criteria “further[s] the legitimate interest of business establishments in controlling financial risk.” (Ibid.)

Ultimately, Plaintiff cites no authority

suggesting that protection under Unruh extends to source of income. As one court noted, "decisions issued by the court of appeal during the post-Harris period reflected a new unwillingness to expand the number of protected characteristics under the Unruh Act." (Butler v. Adoption Media, LLC (N.D.Cal. 2007) 486 F.Supp.2d 1022, 1032.) Therefore, Plaintiff is not entitled to summary adjudication of the Unruh claim.

IV.

Negligence

The elements of negligence are: (1) a duty to exercise ordinary care; (2) breach of that duty; (3) causation; and (4) damages. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

For the reasons discussed above, Plaintiff has failed to establish the element of damages, and the claim is not saved by the Unruh damages provision.

CONCLUSION

Plaintiff's motion for summary judgment or adjudication is DENIED.